U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL TRANSIT ADMINISTRATION

REGION 3

RECIPIENT INFORMATION REQUEST (RIR)

FY 2023 Triennial Review
of the

Transportation District Commission of Hampton Roads

Hampton, VA

RECIPIENT ID: 1456

RECIPIENT WEBSITE: https://gohrt.com/

Site Visit Dates: TBD

Contractor

Ellen Harvey
Calyptus Consulting Group, Inc.
617-577-0042
eharvey@calyptusgroup.com

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OVERVIEW

The Federal Transit Administration (FTA) is conducting a Triennial Review of Transportation District Commission of Hampton Roads (HRT). The review determines whether a recipient is administering its FTA-funded programs in accordance with 49 U.S.C. Chapter 53, Federal transit law provisions. It assesses the recipient's management practices and program implementation to ensure that the programs are administered in accordance with FTA requirements and are meeting program objectives.

The virtual site visit portion of the review begins with an entrance conference, at which the purpose of the Triennial Review and the review process will be discussed. The reviewer will conduct additional interviews and reviewed documentation to evidence of HRT compliance with FTA requirements. The recipient will be contacted to schedule the site visit dates. Ms. Ellen Harvey of the Calyptus Consulting Group, Inc. will assist FTA staff in conducting the review.

Pre-site Review

This Recipient Information Request (RIR) contains a preliminary list of items and questions that the recipient will be required to submit to the reviewer. The information provided will assist the reviewer in answering the questions in the related section(s) of the FY2022 Contractors' Manual. Each section of the guide addresses a specific review area. This document also follows the same methodology. When submitting a single document to satisfy multiple requests, please note in the "*Comments for Recipient*" column the area(s) of the document (i.e., section or page number, etc.) which request the document is addressing.

This document is made up of three sections.

- Section A – *Recipient Profile*. All recipients that provide service complete Table I. States complete Table II. Recipients with subrecipients complete Table III. All recipients complete Tables IV and V.

- Section B – *Recipient Information Request.* Please assemble and organize the requested documents preferably in PDF, MS Word, or MS Excel format. Electronic versions of the documents are required. For consistency, please use the below example as a guide for naming/identifying the documents.

Example: Folder/File Naming Convention

Review Area/ Document	Folder/File Name
2. Financial Management and Capacity	2_Financial Management and Capacity
a. Financial statements or comprehensive annual financial reports for the past three years	2a1_FY23 FinStmts.doc
	2a2_FY23 FinStmts.doc
	2a3_FY23 FinStmts.doc
	2a4_FY23 CAFR.doc
b. Local Match – Amounts and Sources	2b1_StateMatch.doc
	2b2_CtyMatch.doc
c. Financial policies and procedures	2c1_FinPolGrt.doc
	2c2_FinProcCsh.doc

- Section C – *Site Visit Schedule*. A draft site visit schedule is provided in this document. This schedule is intended to provide recipients with an idea of how the on-site portion of the review will be conducted and an approximate timeline for each activity and subject areas discussed. A final schedule will be provided prior to the site visit.

This document and corresponding requested recipient documents are intended to inform the reviewer as much as possible in preparation for the site visit. A more complete response to this RIR can result in a smoother review where minor issues can be addressed or prepared for well in advance of the site visit.

In preparation for the site visit, reviewers will work with the recipient to obtain additional information and clarifly responses to this RIR so as to determine the recipient's compliance with Federal requirements. As a result, **the recipient will receive follow-up requests for information**, based upon the review of documents submitted, research conducted, and discussions between the regional office and reviewer.

Agenda Package

Prior to the site visit, the reviewer will provide an Agenda Package. The Agenda Package will address:

- Areas of review
- Questions for discussion
- Follow-up items related to the review area to be covered prior to and during the virtual review
- Electronic clearinghouse (ECHO) records for review
- Maintenance records for review (facilities, rolling stock, and equipment)
- Procurement files for review
- Facilities to be visited
- Contractors, lessees, and/or subrecipients to be visited (and related oversight files)
- Final site visit schedule and logistics

So that the time spent together can be as productive as possible, please have representatives available who are familiar with the listed topics, as well as the pertinent documentation, the sample documents gathered and assembled for the review, **and subrecipients/contractors notified and available for discussions.**

If there are any questions about the review process, any documents or items identified for additional disscusion, or the documentation required, please contact Jason Yucis, Financial Analyst, at jason.yucis@dot.gov, or the reviewer, Ellen Harvey, at 617-577-0042 or eharvey@calyptusgroup.com. We look forward to a meaningful and successful review.

5. DRUG-FREE WORKPLACE ACT

BASIC REQUIREMENT: Recipients are required to maintain a drug free workplace for all award-related employees; report any convictions occurring in the workplace timely; and have an ongoing drug free awareness program.

NOTE: *For files used to satisfy multiple requested documents, please indicate where in the file, i.e., page number, section, etc., the information can be found.*

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
a. Written drug free workplace policy	All recipients			
b. Examples of drug free awareness notifications, such as brochures, posters, information on bulletin boards, employee assistance programs	All recipients			
c. Number of employees with a Federal or State criminal drug statute conviction during the review period	All recipients			

6. DRUG AND ALCOHOL PROGRAM

BASIC REQUIREMENT: Recipients receiving Section 5307, 5309, 5311 or 5339 funds that have safety-sensitive employees must have a drug and alcohol testing program in place for such employees.

NOTE: *For files used to satisfy multiple requested documents, please indicate where in the file, i.e., page number, section, etc., the information can be found.*

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
a. Copy of board-adopted drug and alcohol policy with date of board adoption	All recipients of Sections 5307, 5309, 5311 or 5339 funds with safety-sensitive employees excluding commuter rail-only providers			
b. List of covered employees placed in safety-sensitive positions and supervisors or company officials charged with making reasonable suspicion determinations during the review period (include name and date placed in position or first began making reasonable suspicion determinations)	All recipients of Sections 5307, 5309, 5311 or 5339 funds with safety-sensitive employees excluding commuter rail-only providers			

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
c. Training programs for covered employees and supervisors	All recipients of Sections 5307, 5309, 5311 or 5339 funds with safety-sensitive employees excluding commuter rail-only providers			
d. Certificates of service agents for the Medical Review Officer, Breath Alcohol Technicians, Collectors, and Substance Abuse Professionals	All recipients of Sections 5307, 5309, 5311 or 5339 funds with safety-sensitive employees excluding commuter rail-only providers			

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
e. List of subrecipients, contractors, subcontractors, and lessees with safety-sensitive employees	Recipients with subrecipients, contractors, subcontractors, and lessees with safety-sensitive employees who receive Section 5307, 5309, or 5311 funds directly from the recipient			

7. SECTION 5307 PROGRAM REQUIREMENTS

BASIC REQUIREMENT: The recipient must participate in the transportation planning process in accordance with FTA requirements and the metropolitan and statewide planning regulations.

Recipients shall develop, publish, afford an opportunity for a public hearing on, and submit for approval, a program of projects (POP).

Recipients are expected to have a written, locally developed process for soliciting and considering public comment before raising a fare or carrying out a major transportation service reduction.

For fixed-route service supported with Section 5307 assistance, fares charged seniors, persons with disabilities or an individual presenting a Medicare card during off peak hours will not be more than one half the peak hour fares.

NOTE: *For files used to satisfy multiple requested documents, please indicate where in the file, i.e., page number, section, etc., the information can be found.*

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
a. For recipients in small urbanized areas: • signed metropolitan transportation planning agreement between the recipient, MPO, state(s), and public providers of public transportation • written agreement addressing provisions for developing and sharing performance information, if not addressed in metropolitan transportation planning agreement	All Section 5307 recipients that provide fixed-route service during peak and off-peak hours			
b. If the recipient relies on the public involvement process of the TIP to meet Section 5307 public involvement requirements: • MPO public participation plan • TIPs and TIP notices published since the last review	All Section 5307 recipients			

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
c. If the recipient relies on its own Section 5307 public involvement process: • POP public notices for the past three years • Consultative process, including how coordination is performed with interested parties, if written • List of complaints received from interested parties in relation to the POP consultative process • Proposed POPs and final proposed POPs, if amended	All Section 5307 recipients			

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
d. Written policy for soliciting public comment prior to implementing a fare increase or major service reduction	All Section 5307 recipients who rely on the public involvement process of the TIP to meet Section 5307 public involvement requirements			
e. Half fare/special identification card application	All Section 5307 recipients who on the public involvement process of the TIP to meet Section 5307 public involvement requirements			

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
f. List of fare increases and major service reductions implemented since last review with date of implementation	All Section 5307 recipients who on the public involvement process of the TIP to meet Section 5307 public involvement requirements			

8. SECTION 5310 PROGRAM REQUIREMENTS

BASIC REQUIREMENT: Recipients must expend Section 5310 funds on eligible projects that meet the specific needs of seniors and individuals with disabilities. Projects selected for funding must be included in a locally developed, coordinated public transit-human services transportation plan. Recipients must approve all subrecipient leases of Section 5310-funded vehicles. Leases of Section 5310-funded vehicles must include required terms and conditions. Either the recipient or subrecipient must hold title to the leased vehicles.

NOTE: *For files used to satisfy multiple requested documents, please indicate where in the file, i.e., page number, section, etc., the information can be found.*

Required Documents	Applicability	Date Submitted	Electronic File Name	Comments from Recipient
a. State correspondence approving a public body to coordinate services for seniors and persons with disabilities, if applicable	Designated recipients of Section 5310 funds			
b. Certification documentation that no nonprofits are readily available, if applicable	Designated recipients of Section 5310 funds			
c. Sample Section 5310 vehicle lease	Designated recipients of Section 5310 funds			

9. SECTION 5311 PROGRAM REQUIREMENTS

BASIC REQUIREMENT: States must expend Section 5311 funds on eligible projects to support rural public transportation services and intercity bus transportation.

NOTE: *For files used to satisfy multiple requested documents, please indicate where in the file, i.e., page number, section, etc., the information can be found.*

Required Documents	Applicability	Date submitted	Electronic file name	Comments from Recipient
a. Governor's certifications for intercity bus for the review period, if applicable	States			
b. Intercity bus studies	States			

10. PUBLIC TRANSPORTATION AGENCY SAFETY PLAN (PTASP)

BASIC REQUIREMENT: Recipients must comply with the Public Transportation Agency Safety Plan (PTASP) regulation (49 CFR Part 673) to ensure public transportation providers develop and implement an Agency Safety Plan (ASP).

NOTE: *For files used to satisfy multiple requested documents, please indicate where in the file, i.e., page number, section, etc., the information can be found.*

Required Documents	Applicability	Date submitted	Electronic file name	Comments from Recipient
a. ASP(s) and all referenced documents, including policies and/or procedures	Recipients with ASPs			
b. Documentation of the recipient's Board of Directors' or Equivalent Authority's approval of the ASP	Recipients with ASPs			
c. Documentation of the Safety Committee's approval of the ASP (if applicable) or of development or update of the ASP in coordination with frontline employee representatives (if applicable).	Recipients with ASPs			

Required Documents	Applicability	Date submitted	Electronic file name	Comments from Recipient
d. Documentation of the ASP approval by the State Safety Oversight Agency (SSOA)	Rail transit agencies only			
e. Organizational chart or other documentation of the CSO/SMS Executive's uninterrupted line of reporting to the Accountable Executive, if not included in the ASP	Recipients with ASPs			
f. Emergency Preparedness and Response Plan, if not included in the ASP (rail transit mode only)	Rail transit agencies only			
g. List of small public transportation providers for which the State developed ASPs, if applicable	Recipients with ASPs			
h. Small public transportation provider State ASP opt out letter, if applicable	Recipients with ASPs			

11. CYBERSECURITY

BASIC REQUIREMENT: Recipients that operate rail fixed guideway public transportation systems must certify compliance with the requirements for establishing a cybersecurity process under 49 U.S.C. § 5323(v), a new subsection added by the National Defense Authorization Act for Fiscal Year 2020, Pub. L. 116-92, § 7613 (Dec. 20, 2019).

Required Documents	Applicability	Date submitted	Electronic file name	Comments from Recipient
a. Recipients are not required to provide any documentation to the reviewers relating to this review area, based on the sensitivity of the information.	Recipients that operate rail service			

SECTION C – SITE VISIT SCHEDULE

The areas to be discussed during the site visit will be determined after FTA and the reviewer have reviewed the documents and answers provided to this and any follow-up items requested.

There will be several major milestones that we will collaborate with you to meet before we get to the Virtual Site Visit Exit Conference. A general overview of this timeline is demonstrated below:

Monday		
9:00 – 10:00	Introductions and Entrance Conference	
10:00 – 12:00	Legal Cybersecurity (if applicable)	
	Financial Management and Capacity *Discuss ECHO Files*	
12:00-1:00	Lunch	
1:30 – 3:00	Technical Capacity – Award Management Technical Capacity – Program Management and Subrecipient Oversight Technical Capacity – Project Management	
Tuesday		
9:00 – 10:00	Follow-up from Monday	
10:00 – 1:00	Americans with Disabilities Act (ADA) – General ADA – Complementary Paratransit Equal Employment Opportunity Title VI	
12:30 – 1:30	Lunch	
1:30 – 3:30	Disadvantaged Business Enterprise	
	Procurement	Discuss procurement files

Wednesday	
9:00 – 10:00	Follow-up from Tuesday
10:00 – 11:30	Maintenance *Discuss PM Records* Transit Asset Management Satisfactory Continuing Control
11:30 – 12:30	Section 5307 Program Requirements Section 5310 Program Requirements (if applicable) Section 5311 Program Requirements (if applicable) School Bus Charter Bus Drug-Free Workplace Act Drug and Alcohol Programs Public Transportation Agency Safety Plan
12:30 – 1:30	Lunch
Afternoon Max 2PM	*Pre-Exit Call with Region 3*
Thursday	
9:00 – 10:00	Wrap Up
1:00 – 2:00	Exit Conference